

Rajkumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 December 2023 · 2023:AHC:236948-DB · WRIT - C No. 41520 of 2023 · **Writ disposed; Forum to decide pending 7.10 application within one month**

HEADNOTE

Writ disposed of. The petitioner had already moved the Consumer Redressal Forum on 14.06.2023 under clause 7.10 of the U.P. Electricity Supply Code, 2005. The Electricity Department stated that the Forum was functional and chaired by the Chief Engineer. The Forum was directed to decide that application within one month of certified copy.

FACTUAL SUMMARY

Rajkumar petitioned the Allahabad High Court in Writ-C No. 41520 of 2023. He told the Court that his application under clause 7.10 of the U.P. Electricity Supply Code, 2005 was not being heard because the Tribunal or Forum had no appointment. The matter was adjourned for instructions. At the next hearing he stated that he had already approached the Consumer Redressal Forum by an application dated 14 June 2023. The Electricity Department stated that the Forum was functional and was chaired by the Chief Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Time-bound decision of a pending clause 7.10 application by the Consumer Redressal Forum

HOLDING

The petitioner having already approached the Consumer Redressal Forum by an application dated 14.06.2023 under clause 7.10 of the U.P. Electricity Supply Code, 2005, and the Electricity Department having stated that the Forum is functional and chaired by the Chief Engineer, that pending application shall be decided within one month from presentation of a certified copy of the order, and the writ petition is disposed of. ¶ 2-5

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10 The clause 7.10 application dated 14.06.2023 was already before the Consumer Redressal Forum. The Court treated that Forum as the body to decide it and fixed one month from presentation of a certified copy. ¶ 2-5

cgrf-7.10-alternate-remedy Once the Department stated that the Forum was functional and chaired by the Chief Engineer, the writ was disposed of without a decision on the grievance, leaving the pending application to the Forum. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE APPLICATION DATED 14.06.2023 PENDING BEFORE THE CONSUMER REDRESSAL FORUM

The Court directed the Forum to decide the application and did not adjudicate the grievance. ¶ 4-5